

Case law

of the Boards of Appeal
of the European Patent Office

10th edition 2022



Boards
of Appeal

**Legal Research Service
of the Boards of Appeal**

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Published by

European Patent Office
Legal Research Service
of the Boards of Appeal
ISBN 978-3-89605-303-9

This publication is available
in PDF and HTML format on
www.epo.org/case-law

Foreword to the tenth edition

Over the past 42 years, the Boards of Appeal have developed a substantial body of case law: during this time, we have dealt with more than 55 000 cases and issued over 41 000 decisions. In the same period, the Enlarged Board of Appeal has handed down more than 100 decisions and opinions under Article 112 EPC, in order to clarify legal points of fundamental importance and ensure a uniform application of the law.

The present tenth edition of the "Case Law of the Boards of Appeal of the European Patent Office" provides a comprehensive overview of this case law. It contains summaries of or references to almost 8 000 decisions which were issued in writing in the period up to the end of 2021. Also included are a number of important decisions rendered at the beginning of 2022, as well as the questions of law referred to the Enlarged Board of Appeal under Article 112 EPC in cases **G 2/21**, **G 1/22** and **G 2/22**.

As in previous editions, the decisions are ordered according to topic, although some chapters have been re-arranged to reflect developments in the case law or legislative changes (in particular in the Rules of Procedure of the Boards of Appeal) or to allow relevant topics to be found more easily. Readers should also note that, between editions, regular updates on the Boards' case law are provided by two publications, namely a case law report with summaries of decisions in the language of the proceedings published on the Boards of Appeal website and the "EPO Boards of Appeal Case Law" supplementary publications of the EPO Official Journal. Furthermore the html version of the present edition will be regularly updated with the catchwords of important new decisions.

This publication will be a useful reference for anyone interested in European patent law. However, since a summary, no matter how carefully prepared, cannot serve as a substitute for the decision itself, readers should be aware that the texts of all decisions can be found in the decisions database of the Boards of Appeal website (<https://www.epo.org/law-practice/case-law-appeals.html>). The website also provides an RSS feed for users wishing to be alerted to newly published decisions or to information on the Boards of Appeal generally.

I would like to thank the members of our Legal Research Service, who updated and revised the text for the present tenth edition. My thanks also go to the EPO Language Service, without whose co-operation the simultaneous publication in the three official languages would not have been possible and to all the other EPO staff who contributed to the production of this latest edition.

I am confident that this new edition will once again provide you, the reader, with an invaluable source of information for your work.

Carl Josefsson
President of the Boards of Appeal

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